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The Principle of Indivisibility and Article 12

1 INTRODUCTION

Chapter 2 described how different capacity tests and decision-making principles have developed from the increasing acknowledgement of the right of adults with disability to lead autonomous, self-determined lives, to be respected as persons, and to be free from discriminatory treatment. It outlined the history of the debate around the drafting of Article 12, as to whether it should abolish substitute decision-making or retain it as a last resort and how the final draft represents a compromise by remaining silent on the issue. Following ratification, this debate evolved into an interpretative one. The UN Disability Committee's *General Comment No 1* prescribes that Article 12 requires recognition of universal legal capacity and the abolition of decision-making by substitutes, while many commentators advocate for an interpretation that allows decision-making by substitutes as a last resort.

Arguments that all adults can be supported to make their own decisions privilege the liberal value of autonomy and therefore conclude that decision-making by substitutes constitutes unlawful discrimination through its denial of autonomy. Arguments for retention of decision-making by substitutes as a last resort emphasise the importance of other values or outcomes, including protection from harm. They conclude that decision-making by substitutes is not always discriminatory but may be an empirical inevitability that does not necessarily result in disadvantage. I argue that recognition of this empirical reality is premised on a social model of disability that acknowledges the residual impact of impairment on the lived experience of people with cognitive disability.

This chapter introduces the main argument of this book – that the principle of indivisibility demands an interpretation of Article 12 that allows for, and even requires, decision-making by substitutes as a last resort to promote equality and social inclusion for some adults with cognitive disability, while still recognising personhood. The principle of indivisibility demands an interpretation and application of Article 12 that recognises the material reality of adults' lives, including the residual impacts of impairment and the associated socio-economic disadvantage disproportionately

associated with disability. Section 2 begins by describing the history of the principle of indivisibility of human rights in UN law and doctrine. It originated with statements by the UN General Assembly in 1950 when the UN decided to split the human rights in the Universal Declaration of Human Rights ('UN Declaration')[1] between the two binding covenants: the International Covenant on Civil and Political Rights ('ICCPR')[2] and the International Covenant on Economic, Social and Cultural Rights ('ICESCR').[3] Section 3 establishes the particular concept of indivisibility, which is used as the basis for this thesis, as incorporating (a) recognition of the interdependence of human rights, and (b) recognition of the equal importance of economic, social and cultural ('socio-economic') rights with civil and political ('civil–political') rights. It further explains how the two separate categories of rights are typically demarcated from one another, but also shows that the differences are frequently overstated if not non-existent. Section 4 explains the particular importance of the principle of indivisibility in claiming the rights of people with disability because of the disproportionate levels of socio-economic disadvantage among people with disability.

Section 5 goes on to establish both the legitimacy and urgency of applying the principle of indivisibility to an interpretation of the CRPD. It describes how the principle of indivisibility is emphasised and evidenced in the text of the CRPD, more than in any other convention, and how much of the CRPD literature recognises and emphasises the principle. While much of the literature seeks to conceptualise indivisibility in the CRPD as dissolving the categories between rights, I argue that a concept of indivisibility as dissolution risks actually perpetuating the privileging of civil–political rights under the cloak of indivisibility.

Section 6 begins the analysis of how the principle of indivisibility demands an interpretation of Article 12 as requiring both supported decision-making and decision-making by substitutes as a last resort. It does this first by considering how the rights within Article 12 itself – the right to legal capacity and the right to support – are interdependent and interrelated. It shows that, while the right to legal capacity is widely agreed to be a civil-political right, the right to support is more a socio-economic right.

2 THE HISTORY OF THE PRINCIPLE OF INDIVISIBILITY

The United Nations Bill of Rights consists of the UN Declaration, adopted in 1948, and the two foundational covenants – the ICCPR and the ICESCR – both adopted

[1] *Universal Declaration*, GA Res 217A (III), UN GAOR, 3rd sess, 183rd pen mtg mtg, UN Doc UN Doc A/810 (10 December 1948) ('*UN Declaration*').

[2] *International Covenant on Civil and Political Rights, opened for signature 19 December, 1966, 999 UNTS, (entered into force 23 March 1976)* ('*ICCPR*').

[3] *International Covenant on Economic, Social and Cultural Rights, opened for signature 16 December, 1966, 993 UNTS 3 (entered into force 3 January 1976)* ('*ICESCR*').

in 1966 and ratified in 1976.[4] The rhetoric of interdependence and indivisibility began in the context of the drafting of the two foundational UN human rights covenants and has continued to evolve and be increasingly recognised in human rights instruments since that time.

2.1 *The Universal Declaration of Human Rights*

The UN Declaration is a non-binding instrument with all rights in the one document. However, when it came to incorporating these human rights into a binding treaty, it was ultimately agreed to split the rights between the two covenants, each incorporating one category of what have become known as two separate categories of rights – civil–political on the one hand and socio-economic on the other. A popular theory for why the split occurred is that it was due to Cold War Cold politics, with the West aiming to subordinate the significance of socio-economic rights and the Soviet Union aiming to privilege them. However, some theorists argue that Cold War politics were not the original cause of the schism and that the idea that only socialist political systems endorsed socio-economic rights was a later, inaccurate and ideological superimposition.[5] These two categories of rights have come to be known as 'first generation' rights (i.e. civil–political) and 'second generation' rights (i.e. socio-economic), respectively.[6]

Whelan and Donnelly point out that the United States originally supported the development of socio-economic rights, and they trace the origins of this support to the impact of the 1930s Great Depression on US politics and society.[7] Rights to liberty and freedom are stereotypically conceived of as civil–political rights, but President Roosevelt is described as linking these to socio-economic conditions in his statement that: 'We have come to a clearer realisation of the fact … that positive individual freedom cannot exist without economic security and independence'.[8] Donnelly asserts that the recognition of the importance of socio-economic rights formed the basis of the post–World War Two liberal democratic welfare state in the West.[9] Whelan and others opine that, rather than Cold War ideologies being the

[4] Jack Donnelly, *Universal Human Rights in Theory and Practice* (Cornell University Press, 3rd ed, 2013) 26.

[5] Daniel J Whelan, *Indivisible Human Rights: A History* (University of Pennsylvania Press, 2010) 32, 54; Jack Donnelly (n 4) 235–6; Daniel J Whelan and Jack Donnelly, 'The West, Economic and Social Rights, and the Global Human Rights Regime: Setting the Record Straight' (2007) 29(4) *Human Rights Quarterly* 908, 909–10.

[6] Whelan (n 5) 209–12. I choose not to use the terminology of 'generations' of rights because of its tendency to entrench or perpetuate the hierarchy of civil–political over socio-economic rights.

[7] Whelan and Donnelly (n 5) 921; William A Schabas, 'Freedom from Want: How Can We Make Indivisibility More Than a Mere Slogan?' (1999/2000) 11 *National Journal of Constitutional Law* 189, 193; Whelan (n 5) 20–5.

[8] Whelan (n 5) 28; Schabas (n 7) 193.

[9] Jack Donnelly (n 4) 253.

cause of the split between covenants, arguments around the necessity for different enforcement mechanisms for the various categories of rights were what prevailed.[10] Further discussion of these differences is included in the following text.

2.2 *Indivisibility Invoked on Division of Human Rights into Two Binding Covenants*

It was during the discussions and negotiations around the splitting of the covenants that statements of 'interdependence' and 'indivisibility' began to appear. Neither the Universal Declaration, nor the ICCPR, nor the ICESCR include references to indivisibility, yet the rhetoric and concept have, since the 1950s, gained increasing purchase in the human rights community.[11] In a meeting of the Third Committee of the UN General Assembly in 1950, in response to suggestions that the proposed covenant be split, one delegate entreated those present 'not to divide the indivisible'.[12] Not long afterwards, the General Assembly made what is now referred to as its 'unity' resolution, resolving that: '…the enjoyment of civil and political freedoms and of economic, social and cultural rights are interconnected and interdependent'.[13] The covenants eventually provided in their Preambles, recognition of the interconnectedness of the two sets of rights, the ICCPR recognising that:

> in accordance with the Universal Declaration of Human Rights, the ideal of free human beings enjoying civil and political freedom and freedom from fear and want can only be achieved if conditions are created whereby everyone may enjoy his civil and political rights, as well as his economic, social and cultural rights.[14]

And the ICESCR provides that: 'the ideal of free human beings enjoying freedom from fear and want can only be achieved if conditions are created whereby everyone may enjoy his economic, social and cultural rights, as well as his civil and political rights'.[15]

The UN's next significant statement on indivisibility came in 1968 in the Proclamation of Teheran, *Final Act of the International Conference on Human Rights*. It provided that: 'Since human rights and fundamental freedoms are

[10] Whelan (n 5) 64; Schabas (n 7) 202; Gauthier DeBeco, 'The Indivisibility of Human Rights and the Convention on the Rights of Persons with Disabilities' (2019) 68 (January) *International and Comparative Law Quarterly* 141; Michael Ashley Stein, 'Disability Human Rights' (2007) 95(1) *California Law Review* 75, 143.

[11] Whelan (n 5) 2.

[12] Ibid 76; Dorothea Anthony, 'The Human Rights Principle of Indivisibility and Its Ideological Significance in the Contemporary Age' (Dissertation, University of New South Wales, 2018) 29 <http://unsworks.unsw.edu.au/fapi/datastream/unsworks:51572/SOURCE02?view=true>.

[13] Preamble pt E para 3; Anthony (n 12) 20.

[14] *ICCPR* Preamble para 3.

[15] *ICESCR* Preamble.

indivisible, the full realisation of civil and political rights without the enjoyment of economic, social and cultural rights is impossible'.[16] Some have interpreted the Proclamation of Teheran as asserting the importance of socio-economic rights over civil–political rights.[17] While there have been criticisms of this particular formulation of the principle of indivisibility, the principle is used by many human rights advocates to argue for the rights of marginalised and disadvantaged groups, including people with disability.[18]

2.3 *Increasing References to Indivisibility by UN Institutions from 1970s*

General Assembly resolutions proclaiming the indivisibility of human rights became more prevalent in the 1970s and 1980s, culminating in the 'Vienna Declaration and Programme of Action' ('the Vienna Declaration') at the World Conference on Human Rights in 1993. The Vienna Declaration provided that: 'All human rights are universal, indivisible, and interdependent and interrelated. The international community must treat human rights globally in a fair and equal manner, on the same footing and with the same emphasis'.[19] This declaration was made at a time when the human rights of women, children, migrants, refugees and other vulnerable populations were beginning to be emphasised. Hence, the Vienna Declaration has been described as a warning against excluding minority groups from human rights protections.[20] In this way, the principle of indivisibility is closely linked with the idea of the universality of rights.[21] Others have described the Vienna Declaration as restoring the unity of human rights as originally established in the Universal Declaration and before their splitting between the covenants.[22]

2.4 *Conclusions on Status of Indivisibility as a Human Rights Principle*

The concepts of interdependence and indivisibility had their genesis in discussions surrounding the splitting of the two covenants but have since grown organically and have been used in various ways and for different purposes ever since. Quite

[16] United Nations, *Final Act of the International Conference on Human Rights*, UN Doc A/CONF.32/41 (22 April–13 May 1968) [13].
[17] Whelan (n 5) 151, 155, 163; Anthony (n 12) 24.
[18] Philip Alston, 'Disability and the Covenant on Economic, Social and Cultural Rights' in Theresia Degener and Yolan Koster-Dreese (eds), *Human Rights and Disabled Persons: Essays and Relevant Human Rights Instruments* (Martinus Nijhoff, 1995) 94, 94; Anthony (n 12) 1, 125–6.
[19] World Conference on Human Rights, *Vienna Declaration and Programme of Action*, UN Doc A/CONF.157/24 (25 June 1993) part 1 [5].
[20] Whelan (n 5) 180.
[21] Jack Donnelly (n 4) 31–2.
[22] Whelan (n 5) 176–9.

frequently, commentators have described the notion of the interdependence and indivisibility of human rights as mere rhetoric or as aspirational.[23] However, others have described indivisibility as: 'a concept at the very root of international human rights law',[24] as 'an official doctrine of the UN, supported both by the General Assembly and by the Office of the High Commissioner for Human Rights',[25] and as 'part of the normative backbone of the UN official doctrine of human rights'.[26]

3 WHAT IS MEANT BY 'THE PRINCIPLE OF INDIVISIBILITY'?

In this book, I use the term 'the principle of indivisibility' as a convenient abbreviation for the 'principle of the indivisibility, interdependence and interrelatedness of rights'.[27] However, the terms 'indivisibility' and 'interdependence' are used differently by different theorists; the differences being sometimes only terminological but at other times substantive.[28] As indicated in Chapter 1, an investigation and critique of different concepts of indivisibility and the contentions around them is beyond the scope of this book.[29] It is identified above, however, that there is clear and growing support for recognition of the principle of indivisibility; therefore, I rely on two prevalent, if not dominant, concepts in the literature. The first concept is that indivisibility is a type of interdependence between human rights. The second is that there is no hierarchy between the two traditional categories of rights (i.e. civil–political and socio-economic). I choose this formulation of the concept because in my view, it best explains the content and structure of the CRPD as explained in Section 5.

[23] Anthony (n 12) 24, 126, 235.

[24] Victoria Hamlyn, 'The Indivisibility of Human Rights: Economic, Social and Cultural Rights and the European Convention on Human Rights' (2008) 40 *Bracton Law Journal* 13, 13.

[25] James W Nickel, 'Rethinking Indivisibility: Towards a Theory of Supporting Relations between Human Rights' (2008) 30(4) *Human Rights Quarterly* 984, 985.

[26] Ariel Zylberman, 'The Indivisibility of Human Rights' (2017) 36(4) *Law and Philosophy* 389.

[27] See Chapter 1.

[28] Whelan views 'interdependence' as different from indivisibility, with 'interdependence' referring just to the interdependent relationships: Whelan (n 5) 3; on the other hand, Scott conflates the two terms: Craig Scott, 'The Interdependence and Permeability of Human Rights Norms: Towards a Partial Fusion of the International Covenants on Human Rights' (1989) 27(4) *Osgoode Hall Law Journal* 769, 779; Nickel says indivisibility and interdependence are not the same, that 'Many more rights are interdependent than are indivisible', and that 'Indivisibility is a very strong form of interdependence': Nickel (n 25) 987; but Gilabert sees indivisibility as supporting relations between rights: Pablo Gilabert, 'The Importance of Linkage Arguments for the Theory and Practice of Human Rights: A Response to James Nickel' (2010) 32(2) *Human Rights Quarterly* 425. Anthony writes that: 'We may say, in general terms, that indivisibility refers to the undividedness of rights from one another. Further, it designates the normative importance of this undivided relationship of rights … indivisibility communicates an overall idea of an integral relationship or "firm linkages" between the human rights recognised at international law'. Anthony (n 12) 3.

[29] See Chapter 1, Section 4.2; also 'the concept of indivisibility remains much debated and its meaning is still contentious': DeBeco (n 10) 145.

3.1 *Indivisibility as Interdependence between Different Rights*

The first conception of indivisibility is what Whelan refers to as recognition of the 'interdependence' between rights – that '…enjoyment of any right or group of rights requires enjoyment of others …'.[30] Typical examples are that the right to life may depend on the right to an adequate standard of living[31] and that freedom of assembly depends on an individual's right to freedom of movement, so they may arrive at the place of assembly.[32] An interdependent or 'supporting relationship' exists between the rights because 'one of them contributes to the functioning or stability of' the other.[33] The UN Disability Committee, when it writes in *General Comment No 4* on the right to inclusive education, suggests a concept of indivisibility that incorporates this type of interdependence:

> States parties must recognise the indivisibility and interdependence of all human rights. Education is integral to the full and effective realisation of other rights. Conversely the right to inclusive education can only be realised if certain other rights are implemented.[34]

Variations on this theory of interdependence have been developed and are promulgated in the literature. Shue, for example, proposed that there are certain basic rights – security rights, liberty rights and subsistence rights – the enjoyment of which is essential to the enjoyment of all other rights.[35] There is also one theory that true indivisibility would demand a type of system-wide interdependence: 'the idea that no human right can be fully realised without fully realising all other human rights'.[36] However, arguments have also been made for a less stringent concept of indivisibility as interdependence, being where the implementation of one right is 'highly useful to the fulfilment of the other'.[37]

Some explanations of interdependence refer specifically to interdependence between the two categories of rights. This type of interdependence is driven in part by significant bodies of jurisprudence whereby socio-economic rights have been

[30] Whelan (n 5) 3.
[31] Scott (n 28) 780.
[32] Nickel (n 25) 980.
[33] Ibid 987.
[34] Committee on the Rights of Persons with Disabilities *'General Comment No 4 (2016) On the Right to Inclusive Education* UN Doc CRPD/C/GC/4 (25 November 2016) [44].
[35] These categories are basic in that they cannot be compromised or sacrificed if any other right is to be genuinely realised: Henry Shue, *Basic Rights: Subsistence, Affluence, and U.S. Foreign Policy* (Princeton University Press, 40th anniversary ed, 2020) 1–9; discussed in Morton Emmanuel Winston, 'Indivisibility and Interdependence of Human Rights' (Public Lecture, Nebraska Union, 3 September 1999) 7.
[36] To test the validity of his thesis, Nickel divides rights into seven families, pairs them into forty-two different combinations and concludes that if a claim for indivisiibility demands system-wide interdependence, then it is too strong to be defended: Nickel (n 25) 984–6.
[37] Gilabert, 'The Importance of Linkage Arguments for the Theory and Practice of Human Rights' (n 28) 430.

enforced indirectly through claims of violations of civil–political rights.[38] Indirect enforcement of socio-economic rights has been prominent both in the Council of Europe, as well as in the UN, driven historically by the absence of complaint mechanisms for violations of socio-economic rights.[39] Famously, in the case of *Airey v. Ireland*, the European Court of Human Rights found that '…the mere fact that an interpretation of the Convention may extend into the sphere of social or economic rights should not be a decisive factor against such an interpretation: there is no watertight division separating out that sphere from the field covered by the Convention'.[40]

I note that the versions of indivisibility as interdependence discussed above recognise that, at least in some cases, fulfilment of a civil–political right (e.g. the right to life) may depend on fulfilment of a socio-economic right (e.g. the right to an adequate standard of living). This shows that the concept of indivisibility as interdependence overlaps with the concept of indivisibility as recognising the equal importance of the two separate categories of rights.[41]

3.2 *Indivisibility as No Hierarchy between the Two Sets of Rights: Civil-political and Socio-economic*

Whelan is a leading proponent of the theory that indivisibility demands no hierarchy between the two traditional categories of rights.[42] Like Whelan, Copelon harks

[38] For examples in the case law under the ECHR, see: Davíð Pór Björgvinsson, 'The Protection of the Rights of Persons with Disabilities in the Case Law of the European Court of Human Rights' in Oddný Mjöll Arnadóttir and Gerard Quinn (eds), *The UN Convention on the Rights of Persons with Disabilities: European and Scandinavian Perspectives* (Nijhoff, 2009) 141, 145–7; for examples under the ICCPR, see: Scott (n 28).

[39] While there has always been a right of complaint or communication to the UN for breaches of the ICCPR, a corresponding right under the ICESCR was introduced only in 2014 through the adoption of the *Optional Protocol to the International Covenant on Economic, Social and Cultural Rights*, opened for signature 24 September 2009, UN Doc A/RES/63/117 (entered into force 5 May 2013) ('*Optional Protocol to the ICESCR*'). Similarly, in the Council of Europe jurisdiction, while civil-political rights are subject to formal complaint mechanisms under the *European Convention on Human Rights*, socio-economic rights are included only in the non-binding *Charter of Fundamental Rights of the European Union*, 26 October 2012, 2012/C 326/02.

[40] *Airey v Ireland* (1979) 2 EHRR 305; Hamlyn (n 24) 19; Holger Kallehauge, 'General Themes Relevant to the Implementation of the UN Disability Convention into Domestic Law: Who Is Responsible for the Implementation and How Should It Be Performed?' in Oddný Mjöll Arnadóttir and Gerard Quinn (eds), *The UN Convention on the Rights of Persons with Disabilities: European and Scandinavian Perspectives* (Nijhoff, 2009) 201, 271; Anthony (n 12) 176.

[41] Gavison argues for the interdependence of the two categories of rights on the basis that they both uphold equally 'basic interests'. He illustrates this with the example that the exercise of civil and political rights may depend on the fulfilment of the socio-economic right to accommodation – for example, the civil-political right to vote and the right to bail typically depend on having a stable residential address: Ruth Gavison, 'On the Relationships between Civil and Political Rights, and Social and Economic Rights' in Jean-Marc Coicaud, Michael W Doyle and Anne-Marie Gardner (eds), *The Globalization of Human Rights* (United Nations University Press, 2003) 23, 35, 40.

[42] Whelan (n 5) 2.

back to the Universal Declaration as affirming the interdependence of the two categories, quoting Eleanor Roosevelt as saying that: 'You can't talk human rights to people who are hungry'[43] – that is, political rights of engagement and communication depend on basic rights to subsistence and an adequate standard of living. Alston similarly describes how 'full' civil-political rights may ostensibly be granted to a person with disability, but that the person may still be disenfranchised by being denied fulfilment of social needs including effective communication or essential transport.[44] DeBeco describes how 'According to this approach, giving precedence to a particular category of rights is ineffective, as neglecting one category of rights hinders fulfilment of the other'.[45] Koch makes a further argument for indivisibility, on the basis that the human rights set out in the two foundational covenants overlap,[46] thereby undermining any argument that all of the rights in the ICCPR can be privileged over all of the rights in the ICESCR.

Some arguments have been made for a theory of indivisibility that reverses the traditional hierarchy of rights.[47] This book argues that the two categories of rights are of equal importance, but that, depending on how a person is contingently situated in the real world, their immediate need may be the fulfilment of either a civil-political *or* a socio-economic right. In some cases where an adult with cognitive disability is socio-economically disadvantaged, the fulfilment of a socio-economic right may be needed in order to exercise a civil-political right to legal capacity. As one writer has put it, needs can be hierarchised whereas rights are indivisible.[48]

In summary, the formulations of the principle of indivisibility prevalent in the human rights literature as recognising (1) the interdependence of rights in and between categories, and (2) the equal importance of socio-economic rights with civil–political rights, are applied in this book to interpret the CRPD and Article

[43] Rhonda Copelon, 'The Indivisible Framework of International Human Rights: A Source of Social Justice in the U.S'. (1998) 3(1) *New York City Law Review* 59, 59–60.

[44] Philip Alston (n 18) 95–6.

[45] DeBeco (n 10) 147.

[46] Ida Elisabeth Koch, 'Social Rights as Components in the Civil Right to Personal Liberty: Another Step Forward in the Integrated Human Rights Approach?' (2002) 20(1) *Netherlands Quarterly of Human Rights* 29, 33. Article 1 of each of the *ICCPR* and *ICESCR* establishes the right of peoples to self-determination; Articles 2 and 3 of each includes the right to non-discrimination; Article 8 *ICCPR* prohibits forced labour and Article 6 *ICESCR* recognises the right to gain a living through work; Article 23 *ICCPR* guarantees the family as the fundamental unit of society, and Article 10 *ICESCR* also recognises the right to family protection and assistance.

[47] Whelan writes how 1970s 'revisionism' held that socio-economic rights had priority over civil-political rights: Whelan (n 5) 7; Hamlyn argues that the practice of indirectly enforcing socio-economic rights through complaints mechanisms for breaches of civil-political rights, raises the status of socio-economic rights to fundamental rights: Hamlyn (n 24) 19; Anthony, on the other hand, argues that it may in fact serve to underscore the relative importance of civil-political rights: Anthony (n 12) 178.

[48] Suzanne Cahill, *Dementia and Human Rights* (Policy Press at the University of Bristol, 2018) 14.

12. Before considering how this formulation is reflected and applied in the CRPD, Section 3.3 (this chapter) explains why and how the traditional demarcation of categories has developed and Section 3.4 (this chapter) explains why the principle of indivisibility is important for disability rights.

3.3 *Traditional Demarcations Between the Two Categories of Rights and Challenges to the Hierarchy*

As described above, the principle of indivisibility began to evolve with the splitting of the human rights in the Universal Declaration into two binding covenants. While the rhetoric of interdependence and indivisibility prevailed, civil–political rights have nevertheless been widely considered of greater importance than socio-economic rights,[49] a view challenged by the principle of indivisibility as described above. This notional hierarchy has, in turn, been based on ostensible differences between the two sets of rights, the main ones being that civil–political rights are the only 'true' human rights and that, unlike socio-economic rights, they always require the State to abstain from action.[50]

This section describes the traditional markers but also how the basis of bifurcation has been challenged, such challenges lending support to the equal importance of the two categories of rights.[51] The principle of indivisibility demands recognition that rights in both categories are 'true' human rights, whether or not they require restraint or positive action by the State.

3.3.1 Socio-economic Rights Are Not 'True' Rights at All, Unlike Civil–Political Rights

One view is that socio-economic rights are not really rights at all but mere aspirations and should be treated as goals of economic and social policy[52] or as political aims rather than rights.[53] However, the Office of the High Commissioner for Human Rights has made it clear that the ICESCR 'neither requires nor precludes

[49] Lisa A Crooms, 'Indivisible Rights and Intersectional Identities or, "What Do Women's Human Rights Have To Do with the Race Convention?"' (1997) 40(3) *Howard Law Journal* 619, 627; Jack Donnelly (n 4) 40.

[50] Stephen P Marks, 'The Past and Future of the Separation of Human Rights into Categories' (2009) 24 *Maryland Journal of International Law* 209.

[51] Kristin Henrard, 'Introduction: The Justiciabiity of ESC Rights and the Interdependence of all Fundamental Rights' (2009) 2(4) *Erasmus Law Review* 373, 373–4; Marks (n 50).

[52] Philip Alston and Gerard Quinn, 'The Nature and Scope of States Parties' Obligations under the International Covenant on Economic, Social and Cultural Rights' (1987) 9(2) *Human Rights Quarterly* 156, 158. Sandra Fredman, *Human Rights Transformed: Positive Rights and Positive Duties* (Oxford University Press, 2008) 844.

[53] Martha Jackman and Bruce Porter, 'Social and Economic Rights' in Peter Oliver, Patrick Macklem and Nathalie Des Rosiers (eds), *The Oxford Handbook of the Canadian Constitution* (Oxford University Press, 2017) 843, 1.

any particular form of political or economic system … provided only that it is democratic'.[54] In rebuttal to the charge that socio-economic rights are merely aspirational, Alston and Quinn argue that Article 2 ICESCR imposes a 'clear legal undertaking' on States,[55] with the words:

> 1. Each State Party to the present Covenant undertakes to take steps, individually and through international assistance and co-operation, especially economic and technical, to the maximum of its available resources, with a view to achieving progressively the full realization of the rights recognized in the present Covenant by all appropriate means, including particularly the adoption of legislative measures.

Arguments that ICESCR rights are less determinate than those in the ICCPR and much less precisely defined have been used to support the assertion that they resemble policy goals rather than rights. But once again, Alston and Quinn challenge this contention on the grounds that even if less determinate, the rights are nevertheless real and that States are obliged to give them substance and meaning.[56]

3.3.2 Negative versus Positive Obligations, Cost-Free Versus Resource-Intensive

The charge of indeterminacy of socio-economic rights, as compared with civil-political rights, is also linked to typical classifications of socio-economic rights as imposing positive obligations on states and civil-political rights as imposing negative obligations or obligations of restraint.[57] By this, it is meant, for example, that the civil-political right to freedom of speech places an obligation on the State of non-intervention (i.e. to abstain from censorship).[58] Relevantly, some would say that the civil-political right to legal capacity requires state non-interference (i.e. restraint from imposing a guardianship order). The right to health, though, is socio-economic and places a positive obligation on the State to ensure the provision of goods and services.

Aligned with the supposed negative/positive bifurcation is the distinction made between civil-political rights as being supposedly 'cost-free' and socio-economic rights as being 'resource-intensive'.[59] Acknowledgement of the resource-intensiveness

[54] Committee on Economic Social and Cultural Rights, *General Comment No 3: The Nature of States Parties' Obligations*, UN Doc E/199/23 (14 December 1990) [8] ('*ESCR General Comment No 3*').

[55] Alston and Quinn (n 52) 166.

[56] Alston and Quinn (n 52) 220, 222.

[57] Fredman asserts that positive duties in human rights are sufficiently determinative to be normative, and that precise standards for implementation are not essential as long as clear parameters can be set: Fredman (n 52) 65.

[58] Ida Elisabeth Koch, 'From Invisibility to Indivisibility: The International Convention on the Rights of Persons with Disabilities' in Oddný Mjöll Arnadóttir and Gerard Quinn (eds), *The UN Convention on the Rights of Persons with Disabilities: European and Scandinavian Perspectives* (Nijhoff, 2009) 67, 71.

[59] Henrard (n 51) 373–4; Fredman (n 52) 70; Marks (n 50) 236.

of socio-economic rights, together with the practical need to place limits on expenditure, can be found in Article 2 ICESCR. Article 2 requires states '…to take steps … to the maximum of [their] available resources' to progressively implement the rights in the ICESCR. There is no equivalent provision in the ICCPR, implying that implementation of those rights is resource-free.[60]

However, the idea that the bifurcation of rights can be justified on the basis that they are supposedly realised through either positive or negative actions is now widely challenged,[61] with assertions made that: 'All human rights require both positive action and restraint on the part of the State'.[62] A common example is the right to a fair trial,[63] a civil right that demands the active creation of an independent, accountable (and costly) courts system. Fredman gives the example of the right to adequate housing, which can require either the positive provision of goods and services or restraint by way of abstention from eviction.[64] Alston and Quinn conclude that:

> the reality is that full realisation of civil and political rights is heavily dependent both on availability of resources and the development of the necessary societal structures. The suggestion that realisation of civil and political rights requires only abstention on the part of the state and can be achieved without significant expenditure is patently at odds with reality.[65]

3.3.3 Immediate versus Progressive Implementation

The source of a further ostensible difference between the two categories is found in the exhortation in Article 2 ICESCR that the realisation of the rights it contains may be achieved 'progressively'.[66] Once again, there is no parallel provision in the ICCPR, with the result that civil–political rights have been taken to be immediately realisable.[67] Alston and Quinn point out, though, that the full realisation of civil–political rights may in practical terms also be progressive rather than immediate, given the resources required to build civil and political institutions from the ground up.[68] The Committee on Economic, Social and Cultural Rights ('the

[60] *ESCR General Comment No 3* [9].
[61] Gavison (n 41) 33; Henrard (n 51) 374; Marks (n 50); Hamlyn (n 24).
[62] Jack Donnelly (n 4) 443.
[63] *ICCPR* Article 14.
[64] Fredman (n 52) 2.
[65] Alston and Quinn (n 52) 172; see also, 'The right to vote, for example, is a CP concern requiring action and positive expense …' and 'In other words, the protection of CP rights may require the imposition of positive duties and public expenditure no less than that these are required for the protection of SE rights'. Gavison (n 41) 35.
[66] Article 2 requires a State 'to take steps … to the maximum of its available resources, with a view to achieving progressively the full realisation of the rights recognised in the present Covenant': *ICESCR*.
[67] *ESCR General Comment No 3* [9].
[68] Alston and Quinn (n 52) 175.

ESCR Committee') points out that while there has been a widespread emphasis on the different implementation obligations under the two covenants, 'there are also significant similarities'.[69] In particular, the obligation under Article 2 is for States to 'take steps' that are '…deliberate, concrete and targeted', and that despite resource constraints, States have 'minimum core obligations', particularly in relation to vulnerable persons.[70]

3.3.4 Justiciable versus Non-Justiciable

Another argument for the lesser importance of socio-economic rights is that they are not justiciable and are therefore not enforceable like 'real' (i.e. civil–political) human rights.[71] The Optional Protocol to the ICCPR, aadopted in 1966 and entering into force in 1976, includes the right of an individual to make complaints (i.e. 'communications') to the Human Rights Committee about violations of the ICCPR.[72] One of the reasons provided at the time for splitting the covenants in two was that they required different enforcement methods for implementation,[73] with it being agreed ultimately that the appropriate enforcement method for rights under the ICESCR would be limited to States' periodic reporting.[74] The view prevailed that if socio-economic rights were made justiciable by way of communication and adjudication, this would place too much political power in the hands of the judiciary.[75] However, in 2009, the Optional Protocol to the ICESCR was adopted, and ratified in 2013, providing for a right of communication[76] and mirroring the communication mechanism in the ICCPR.

Even before formal justiciability of socio-economic rights was introduced via the Optional Protocol, challenges had been made to the premise that lack of justiciability meant that they were not 'true' rights. Arguments prevail that enforcement is not all about justiciability,[77] and also that debates about enforceability have limited value in that they take the focus away from important normative issues to consider only what happens when rights are violated.[78] Henrard points out that it is up to

[69] *ESCR General Comment No* 3 [1].
[70] Ibid [10].
[71] Ida Elisabeth Koch, 'Economic, Social and Cultural Rights as Components in Civil and Political Rights: A Hermeneutic Perspective' (2006) 10(4) *International Journal of Human Rights* 405, 405; Jack Donnelly (n 4) 242; Marks (n 50) 213; Fredman (n 52) 2.
[72] *Optional Protocol to the International Covenant on Civil and Political Rights*, opened for signature 16 December 1966, 999 UNTS 171 (entered into force 23 March 1976) Article 1.
[73] Whelan (n 5) 64; Schabas (n 7) 202.
[74] Whelan (n 5); see *ICESCR* Articles 16, 17.
[75] Alston and Quinn (n 52) 170.
[76] *Optional Protocol to the ICESCR* Article 2.
[77] Iain Byrne, 'The Importance of Economic, Social and Cultural Rights in Guaranteeing Civil and Political Rights within the Euro-Mediterranean Partnership' (2004) 9(3) *Mediterranean Politics* 344, 346.
[78] Fredman (n 52) 175.

States and the UN system to more clearly define and circumscribe the content of socio-economic rights, so that their justiciability increases.[79] Arguments in favour of the equal justiciability of the two sets of rights are growing and, in turn, lending support to the claim for equal importance of the two sets of rights and associated claims of indivisibility.[80]

3.3.5 Protecting the Individual from the State versus State Action/Intervention/Intrusion in the Personal Sphere

A final basis for differentiating between the two sets of rights and for privileging civil-political rights is found in the widely accepted premise that human rights are 'solely designed to protect the individual from the State'.[81]

Feminists and others have criticised liberalism for constructing the family as somehow natural and apolitical, in a way that shrouds relationships of power and oppression within the family, thereby justifying the State's reluctance to interfere in family relations.[82] This privileging of the private sphere as apolitical is reflected in the traditional description of civil-political rights as requiring abstention from state interference.[83] However, as already described above, fulfilment of both civil-political and socio-economic rights can demand comprehensive government policies and programs that impact on personal lives. Civil rights require extensive legal systems, as well as health and social services, to ensure the liberty and security of the person and freedom from inhumane treatment. These services may indeed

[79] Henrard (n 51) 375.

[80] Li-Ann Thio, 'The Universal Declaration of Human Rights at 60: Universality, Indivisibility and the Three Generations of Human Rights' (2009) 21(1) *Singapore Academy of Law Journal* 293, 310.

[81] Philip Alston, 'Disability and the Covenant on Economic, Social and Cultural Rights' in Theresia Degener and Yolan Koster-Dreese (eds), *Human Rights and Disabled Persons: Essays and Relevant Human Rights Instruments* (Martinus Nijhoff, 1995) 94, 97; 'the state is considered to be the principal source of unfreedom threatening individual rights and hence should be constrained by every available means …': Getahun A Mosissa, *A Re-examination of Economic, Social and Cultural Rights in a Political Society in the Light of the Principle of Human Dignity* (Intersentia, 2020) 36.

[82] Ibid; 'The covenants, in turn, follow the traditional dichotomy between "negative" and "positive" rights. A negative right connotes freedom from interference and, as such, appears to require mere forbearance on the part of the state': Chisanga Puta-Chekwe and Nora Flood, 'From Division to Integration: Economic, Social and Cultural Rights as Basic Human Rights' in Isfahan Merali and Valerie Oosterveld (eds), *Giving Meaning to Economic, Social, and Cultural Rights* (University of Pennsylvania Press, 2001) 39, 41.

[83] Camillia Kong, 'The Convention on the Rights of Persons with Disabilities and Article 12: Prospective Feminist Lessons against the "Will and Preferences" Paradigm' (2015) 4(4) *Laws* 709, 714–16; 'the traditional liberal approach that civil and political rights (sometimes referred to as negative rights, in the sense of freedom from interference': Bernadette McSherry and Penelope Weller, 'Rethinking Rights-Based Mental Health Laws' in Bernadette McSherry and Penelope Weller (eds), *Rethinking Rights-Based Mental Health Laws* (Bloomsbury Publishing, 2010) 6, 6.

affect personal lives in positive ways and redefine the boundaries between the individual and the State.[84]

3.4 *Conclusion and Commentary on Definition of Indivisibility*

In summary, while there may still be some theorists and practitioners who consider the concepts of interdependence and indivisibility to be mere rhetorical flourishes, there is a growing body of literature that supports these principles as fundamental human rights doctrine. It would be wrong to say that there is one, settled and universally agreed meaning attributed to the principle of indivisibility. Nevertheless, by way of overview, I have distilled the various theories into two broad concepts, and it is these two associated concepts of indivisibility on which I rely in interpreting and applying Article 12.

The first concept describes indivisibility as a system of interdependency or supporting relationships between rights, so that some rights cannot be realised without the realisation of other rights. The second broad concept of indivisibility is that the two categories of rights are of equal importance, reflecting a correction to the historical privileging of civil-political over socio-economic rights. These two concepts of indivisibility are complementary and overlap, given that interdependency of rights applies within and between categories. Extensive critique and interrogation of different theories of the principle of invisibility are beyond the scope of this book, which focuses on how the principle is particularised and applied in the CRPD.

The stereotypical differences between the two categories of rights have fed into the historical and lingering framing of civil-political rights as the only 'true' human rights. civil-political rights have been typified as requiring only negative state action or restraint, as being cost-free, as immediately realisable, as justiciable, and as protecting the individual from the State. On the other hand, socio-economic rights have been typified as policy-oriented, indeterminate and aspirational; as requiring positive state action; as resource-intensive; as progressively realisable; as non-justiciable; and as requiring state intervention or intrusion into personal lives. However, the legitimacy of these stereotyped differences has been widely challenged in the literature and is further challenged by the CRPD, as explained below.

I argue, though, that interpretations of Article 12 that require the abolition of decision-making by substitutes privilege civil–political rights, contrary to the

[84] Jennifer Nedelsky, *Law's Relations: A Relational Theory of Self, Autonomy, and the Law* (Oxford University Press, 2012) 125–9; 'The [CRPD] therefore adopts a particular conceptual view of the state's role in securing individual rights as including more than simple abstinence from the abuse of individuals' civil and political rights'. Colm O'Cinneide, 'Extracting Protection for the Rights of Persons with Disabilities from Human Rights Frameworks: Established Limits and New Possibilities' in Oddný Mjöll Arnadóttir and Gerard Quinn (eds), *The UN Convention on the Rights of Persons with Disabilities: European and Scandinavian Perspectives* (Nijhoff, 2009) 163.

principle of indivisibility. In so doing, these interpretations also privilege those characteristics of rights that are stereotyped as marking civil–political rights. In particular, interpretations of the right to legal capacity as requiring the abolition of decision-making by substitutes privilege autonomy as non-interference (i.e. 'negative' state action). They also rely on a concept of equality as restraint from certain (i.e. discriminatory) state actions.[85] I argue that more complex concepts of autonomy, personhood and equality[86] are required to recognise that the indivisibility of human rights acknowledges the interdependent relationships between rights and the equal importance of socio-economic rights with civil–political rights.

4 INDIVISIBILITY, DISABILITY AND THE CRPD: THE IMPORTANCE OF SOCIO-ECONOMIC RIGHTS

Several commentators have described the CRPD as incorporating the principle of indivisibility more than does any other human rights convention.[87] This section outlines the history that led to the inclusion of both civil–political and socio-economic rights in the CRPD and why the recognition of the indivisibility of rights is of particular importance to disability.

4.1 From Social Policy to Human Rights

Theresia Degener, former Chair of the UN Disability Committee, describes how the UN Yearbooks from 1946 to 1970 referred to people with disability in only three roles: as refugees, as persons in need of rehabilitation and welfare, and as recipients of social security.[88] She recounts how from 1980 to 2000, people with disability came to be positioned in a human rights context, but even then, as 'objects' rather than 'subjects' of human rights. It was only with the new millennium that people with disability have come to be recognised as subjects of human rights as enshrined

[85] See further discussion in Chapter 6.

[86] See Chapters 4, 5 and 6, respectively.

[87] '…the CRPD aspires to manifest the mandate that human rights are 'indivisible, interrelated and interconnected': Michael Ashley Stein and Janet E Lord, 'Future Prospects for the United Nations Convention on the Rights of Persons with Disabilities' in Oddný Mjöll Arnadóttir and Gerard Quinn (eds), *The UN Convention on the Rights of Persons with Disabilities: European and Scandinavian Perspectives* (Nijhoff, 2009) 17, 24; Koch, 'From Invisibility to Indivisibility' (n 58) 67–72; DeBeco (n 10) 155; Amsalu Darge Mayessa, 'Overview of the Notion of Integration of Human Rights: Giving Pragmatic Value to Socio-Economic Rights Rather Than Rim Service' (2014) 83 *Nordic Journal of International Law* 168, 192.

[88] Theresia Degener and Andrew Begg, 'From Invisible Citizens to Agents of Change: A Short History of the Struggle for the Recognition of the Rights of Persons with Disabilities at the United Nations' in Valentina Della Fina, Rachele Cera and Giuseppe Palmisano (eds), *The United Nations Convention on the Rights of Persons with Disabilities: A Commentary* (Springer International Publishing, 2017) 1, 1, 3.

ultimately in the CRPD.[89] While disability had been receiving attention from UN institutions since the UN's inception, it had nevertheless originally been invisible as a human rights issue and segregated as predominantly (or only) a social policy issue.[90] This segregation also occurred at a time when the dominant view of socio-economic rights was that they merely reflected social policy, were aspirational, not enforceable as 'true' rights, and were positioned below civil–political rights in the traditional hierarchy. It was only with the new millennium that an extensive literature grew up around socio-economic rights, giving shape to them both normatively and institutionally.[91]

The subordination of socio-economic rights had been evident in and driven by the different UN institutional arrangements for the two covenants. Oversight of the ICESCR had originally been the responsibility of the Economic and Social Council;[92] while oversight and monitoring of the ICCPR had always been by the Human Rights Committee, as established under the ICCPR itself.[93] It was only in 1985 that the Economic and Social Council established the Committee on Economic, Social and Cultural Rights to specifically monitor and oversee implementation of the ICESCR.[94] These different institutional arrangements reflected and drove the conception of socio-economic rights as being social policy issues outside the agenda of 'human rights' and underpinned a lexicon whereby the term 'human rights' was taken by implication to refer to civil–political rights only. Degener further describes how until the 2000s, disability was:

> segregated as a social policy question, apart from any rights-based discussion. The Special Rapporteur, for example, reported to the Commission for Social Development in New York and not to the Commission on Human Rights in Geneva. While in theory the two commissions had equal status, the Commission for Social Development was in reality a poor cousin.[95]

At a time when socio-economic rights were widely devalued and socio-economic inequalities were still conceived of in social policy terms rather than as triggering human rights claims, disability policy was lumped with socio-economic rights and accorded the same secondary status. It was in this context that disability advocates

[89] Ibid 2, 11.

[90] Ibid 4–10; Brynhildur G Flóvenz, 'The Implementation of the UN Convention and the Development of Economical and Social Rights as Human Rights' in Oddný Mjöll Arnadóttir and Gerard Quinn (eds), *The UN Convention on the Rights of Persons with Disabilities: European and Scandinavian Perspectives* (Martinus Nijhoff, 2009) 257, 258.

[91] DeBeco (n 10) 144; Rhadhika Balakrishnan, James Heintz and Diane Elson, *Rethinking Economic Policy for Social Justice: The Radical Potential of Human Rights* (Routledge, 2016) 25.

[92] Philip Alston (n 18) 99.

[93] *ICCPR* Article 28.

[94] Philip Alston (n 18) 99.

[95] Degener and Begg (n 88) 10.

began to realise that the civil-political rights of people with disability had been largely neglected, and a move began towards recognition of disability as a human rights issue.[96] I suggest that the justified urgency around claiming disability as a human rights issue, and especially as a civil-political rights issue, was shaped in part by the traditional prejudice that civil-political rights were the only true human rights.

In 1995, Quinn suggested changing the rights focus for people with disability from socio-economic rights to civil-political rights to 'mainstream' people with disability. That this was a radical approach for the time is revealed when he writes that:

> It may therefore seem somewhat paradoxical to dwell on the civil and political rights aspects of disability as instanced by the International Covenant on Civil and Political Rights (ICCPR). Indeed, we seem more accustomed to process the legitimate claims of persons with disabilities almost exclusively through the prism of the more overtly 'substantive' catalogue of economic, social and cultural rights. However, rhetoric alone indicates the close connection between the specifically civil rights framework and such socio-economic advances. After all, the quest for greater equality and inclusion is generally framed in the language of civil rights.[97]

This passage signals an ethical, legal and institutional urgency around claiming civil-political rights for people with disability. While the passage describes a 'close connection' between the two sets of rights, I suggest that it nevertheless anticipates adoption or internalisation of the traditional prejudices against socio-economic rights. This is suggested in its counter-posing of 'civil rights' with 'socio-economic *advances*' [emphasis added] and also in proposing that claims to equality and inclusion need to be reframed as demands for civil rights, not as socio-economic rights.[98] The emerging emphasis on civil-political rights in disability advocacy, which has gained significant momentum since 1995, constitutes a much-needed correction to the historical civil-political exclusion of people with disability. However, I argue that the UN Disability Committee's assertion that the fulfilment of the civil-political right to legal capacity is a pre-condition to the exercise of all other rights[99] is an over-correction of historical prejudices, which ignores the principle of indivisibility and risks devaluing socio-economic rights for people with disability.

[96] Lisa Waddington, 'Evolving Disability Policies from Social Welfare to Human Rights: An International Trend from a European Perspective' (2001) 19 *Netherlands Quarterly of Human Rights* 141, 141–2.

[97] Gerard Quinn, 'The International Covenant on Civil and Political Rights and Disability: A Conceptual Framework' in Theresia Degener and Yolan Koster-Dreese (eds), *Human Rights and Disabled Persons* (Martinus Nijhoff, 1995) 69, 69, 70.

[98] See further discussion in Chapter 6.

[99] Committee on the Rights of Persons with Disabilities, *General Comment No 1 Article 12: Equal Recognition before the Law* UN Doc CRPD/C/GC/1 (19 May 2014) [8] ('*General Comment No 1*').

4.2 *The Importance of Indivisibility for Disability*

I argue that the principle of indivisibility is of particular consequence for people with disability. This section describes how socio-economic disadvantage is experienced disproportionately by people with disability (including cognitive disability). People with disability may be situated so that, in practical terms, the fulfilment of socio-economic rights is a pre-condition to fulfilling their right to legal capacity and other civil, economic, political and social rights. The section goes on to explain how the principle of indivisibility, aligned with a social model of disability that recognises the residual impacts of impairment, allows for much-needed welfare and health services to be claimed as rights and not received as charity or as acts of rights-denying paternalism.

4.2.1 Poverty and Disability: Indivisibility Can Reframe Welfare as a Right, Not an Act of Charity

The socio-economic disadvantage suffered by people with disability is well documented both by the UN and in regional reporting,[100] and the Preamble of the CRPD itself recognises 'that the majority of persons with disabilities live in conditions of poverty'.[101] Morris, in writing about the discrimination faced by persons with disability, states that: 'Poverty is probably the most important social factor … Impairment and illness bring additional costs, yet an increased risk of poverty also means that resources are often not available to buy equipment or personal assistance'.[102] Poverty can be a cause of or contributor to social and political (not just economic) exclusion.

[100] In 2011 the World Bank and the World Health Organization published their 'World Report on Disability', which found that people with disability have lower educational and employment outcomes and are more likely to be poor than other people, both in developed and developing countries: World Health Organization and the World Bank, *World Report on Disability 2011* (World Health Organization, 2011) 39. The Australian Council of Social Service reported in 2018 that people with disability experience risk of poverty well above the average of the wider population: Australian Council of Social Service and University of New South Wales, *Poverty in Australia 2018* (Australian Council of Social Service, in partnership with the University of New South Wales, 2018) 58. In Canada, a report published in 2009 showed that approximately 75% of adults with intellectual disabilities were living in poverty: Sheila Bennett and Tiffany L Gallagher, 'Inclusion, Education, and Transition to Employment: A Work in Progress' in Dorothy Griffiths, Frances Owen and Shelley L Watson (eds), *The Human Rights Agenda for Persons with Intellectual Disabilities* (NADD, 2012) 81, 86. In 2010, United States Census Bureau statistics showed that adults with disability were more than twice as likely to fall below the poverty line as those without: Amber Knight, 'Democratizing Disability: Achieving Inclusion (without Assimilation) through "Participatory Parity"' (2015) 30(1) *Hypatia* 97, 104–5; see also Anna Lawson, 'The Human Rights Act 1998 and Disabled People: A Right To Be Human?' in Colin Harvey (ed), *Human Rights in the Community: Rights as Agents for Change* (Hart Publishing, 2005) 135, 136.

[101] Preamble para 19.

[102] Jenny Morris, 'Impairment and Disability: Constructing an Ethics of Care that Promotes Human Rights' (2001) 16(4) *Hypatia* 1, 7.

Socio-economic rights have always included rights to welfare, social protection, social security and government assistance,[103] and yet welfare has often been derided in the disability literature as always rights-denying.[104] The CRPD has been hailed as effecting a paradigm shift by reconfiguring disability away from a 'needs-based', 'welfare' issue that portrays people as 'dependent welfare recipients',[105] and 'from medical and paternalistic approaches' that saw people with disability 'as mere receivers of protection, rehabilitation or welfare'.[106] In the twenty-first century, welfare and other forms of social security are not popularly conceived of as human rights, and historical prejudices against the legitimacy of socio-economic rights linger. Denigration of social security recipients by governments and by sections of the broader community has led to a perception of people receiving government services as a burden or a drain on society,[107] leading also to internalised self-stigma by some recipients.[108]

The stigma attaching to the term 'welfare' may mean that we need to find new language, but I argue that the principle of indivisibility can help to reinvest 'welfare' (or any term that replaces it) with the language of human rights. As many commentators have identified, provision of social goods and services by the State is not in itself rights-denying, but the arbitrary and discretionary way in which services are

[103] *UN Declaration*: Article 2 protects the right to social security; Article 23 provides that work must be paid with 'just remuneration … and supplemented, if necessary, by other means of social protection'; Article 24 includes the right to '…necessary social services, and the right to security in the event of unemployment, sickness, disability … [etc.]'; Article 25 provides that 'Motherhood and childhood are entitled to special care and assistance'. *ICESCR*: Article 9 provides for the right to 'social security, including social insurance'; Article 10 provides for the right to social security benefits for mothers, and 'special measures of protection and assistance' for children.

[104] Shane Clifton, *Hierarchies of Power: Disability Theories and Models and Their Implications for Violence against, and Abuse, Neglect, and Exploitation of, People with Disability* (Royal Commission into Violence, Abuse, Neglect and Exploitation of People with Disability, 2020) 4–5; 'Ambassador MacKay, Chairman of the Ad Hoc Committee … characterised the CRPD as embodyding a "paradigm shift" away from a social welfare response to disability to a rights-based approach', in Rosemary Kayess and Philip French, 'Out of Darkness into Light? Introducing the Convention on the Rights of Persons with Disabilities' (2008) 8(1) *Human Rights Law Review* 1, 3.

[105] Amita Dhanda, 'Constructing a New Human Rights Lexicon: Convention on the Rights of Persons with Disabilities' (2008) 8 *Sur – Revista Internacional de Direitos Humanos* 43; Theresia Degener, 'A New Human Rights Model of Disability' in Valentina Della Fina, Rachele Cera and Giuseppe Palmisano (eds), *The United Nations Convention on the Rights of Persons with Disabilities: A Commentary* (Springer International Publishing, 2017) 41, 44.

[106] Catalina Devandas Aguilar, *Report of the Special Rapporteur on the Rights of Persons with Disabilities*, UN Doc A/HRC/37/56 (12 December 2017).

[107] Kayess and French point out that people with disabilities are more than justified in their mistrust of government and welfare services given the history of abuse of executive power evident in mass institutionalisation and other objectionable practices: Kayess and French (n 104) 26.

[108] Shakespeare writes that 'media and government discourse around welfare benefits can result in negativity towards claimants', leading the public to make a distinction between 'genuine' recipients and others: Tom Shakespeare, *Disability: The Basics* (Routledge, 2018) 76.

often delivered can be.[109] Recognition of the interdependence of rights and of the equal importance of socio-economic rights can serve as an important platform from which people can claim social security and support services as human rights rather than receive them as objects of charity. A social model that recognises the residual impacts of impairment demands that we recognise the particular socio-economic vulnerability of many people with disability.

4.2.2 Guaranteeing the Socio-economic Right to Health: But Not under a 'Medical Model'

The higher rates of poverty experienced by people with disability generally place them at greater risk of health problems while also acting as a barrier to accessing health services.[110] People with disability can be at higher risk of respiratory disease, swallowing difficulties, use of psychotropic medication, and conditions such as epilepsy, Down syndrome and cerebral palsy.[111] Disparities in access include unavailability of dentistry[112] and gynaecological services and screening services for cancers, sexually transmitted infections and osteoporosis (the latter being more prevalent due in part to medication side effects).[113] Moreover, universal health services, as they are currently provided, are not sufficient to meet the needs of persons with disability, who often suffer particular health problems not experienced to the same degree by other members of the community.[114] These conditions are exacerbated by the lack of accessible services, but at the same time, and despite the vicious cycle of disadvantage, it is the nature of the impairment that can create the need for specialist health care in the first instance.

[109] Social services have become oppressive because of the way they have been administered – with surveillance, copious paperwork, mandatory appointments and bureaucratic decisions imposed on individuals without adequate consultation or input: Nancy J Hirschmann, 'Disability Rights, Social Rights, and Freedom' (2016) 12(1) *Journal of International Political Theory* 42, 46; Nedelsky writes that welfare itself does not inhibit autonomy, but the way the law sets up administration regimes can be demeaning, and she suggests it could be remedied partly by increased access to information and natural justice: Nedelsky (n 84) 66; Morris writes of so-called welfare 'dependence': 'Independence is not about doing everything yourself but about having control over how help is provided', in Morris (n 102) 7–8.

[110] Shelley L Watson and Stephanie Hayes, 'The Right to Accessible Health Care for Persons with Intellectual Disabilities' in Dorothy Griffiths, Frances Owen and Shelley L Watson (eds), *The Human Rights Agenda for Persons with Intellectual Disabilities* (NADD, 2012) 59, 62.

[111] Ibid; Office of the Public Advocate (Qld), *Upholding the Right to Life and Health: A Review of the Deaths in Care of People with Disability in Queensland (A Systemic Advocacy Report* (February 2016) 29–47.

[112] 'Another response described a person in residential care who had no visits to the dentist for at least five years' in Royal Commission into Violence Abuse Neglect and Exploitation of People with Disability, *Overview of Responses to Health Issues Paper* (Issues Paper, October 2020) 4.

[113] Watson and Hayes (n 110) 62–8, 75; Office of the Public Advocate (Qld), *Upholding the Right to Life and Health* (n 111) 51–4.

[114] Watson and Hayes (n 110) 59, 63.

The Disability Royal Commission has described the right to health as an 'enabling right' because: 'Health is critical to support the independence and inclusion of people with disability'.[115] Similarly, Brolan et al recognise that the fulfilment of the right to health in Article 25 CRPD:

> can facilitate the advancement of other key rights, such as the right to life (CRPD, Article 10), protecting the integrity of the person (CRPD, Article 17), and the right of persons with disability to an adequate standard of living and social protection (CRPD, Article 28).[116]

A 2016 report by Queensland's Office of the Public Advocate concluded that people with disability can have complex health needs leading to increased risks of premature mortality. It made a range of recommendations for residential facilities, including greater access to specialist medical practitioners; improved training of health professionals and support staff; accreditation of 'disability medicine' as a specialisation;[117] and 'Wherever possible, the use of agency, temporary or casual staff should be avoided'.[118] The list of recommendations illustrates how the fulfilment of rights and entitlements for adults with disability, including cognitive disability, requires significant socio-economic resources and positive measures by government, not just restraint or negative action.

4.3 *Summary and Conclusions*

This section pointed out that, while disability has been an issue of concern for the UN since its inception, its institutions originally failed to position adults with disability as claimants of civil-political rights. The institutions governing the implementation of the ICESCR (but not the ICCPR) were originally focused on disability, but at a time when the dominant framing of socio-economic rights was that they were not 'true' rights but reflected mere social policy aspirations. In this way, the lack of focus for people with disability on the more highly valued civil-political rights served to exclude them from being 'true' human rights claimants.

This led in the 1990s to a move by disability advocates to correct this exclusion by emphasising the position of people with disability as claimants of civil-political

[115] Royal Commission into Violence Abuse Neglect and Exploitation of People with Disability, *Health Care for People with Cognitive Disability* (Issues Paper 2019) 2.

[116] Claire E Brolan et al, 'The Right to Health of Australians with Intellectual Disability' (2011) 17(2) *Australian Journal of Human Rights* 1, 13; also Harpur makes a link between the right to health and the right to life: Paul Harpur, 'The Evolving Nature of the Right to Life: The Impact of Positive Human Rights Obligations' (2007) 9 *University of Notre Dame Australia Law Review* 95, 101–2; see also: 'The recognition that all human rights are interdependent, indivisible and interrelated further reinforces the obligation to attend to the right to health'. Penelope Weller, 'The Right to Health: The Convention on the Rights of Persons with Disabilities' (2010) 35(2) *Alternative Law Journal* 66, 66–7; McSherry and Weller (n 83) 13.

[117] Office of the Public Advocate (Qld), *Upholding the Right to Life and Health* (n 111) vi–xvii.

[118] Ibid ix.

rights. I argue that an interpretation of Article 12 as a civil–political right, fundamental to all other rights and as requiring the abolition of decision-making by substitutes, represents an *over*-correction to past exclusion of people with disability from the civil-political human rights agenda. Applying the principle of indivisibility to Article 12 remedies this over-correction by recognising interdependencies between rights both within and between categories, together with the equal importance of socio-economic with civil-political rights.

The principle of indivisibility is important because there is an urgency in emphasising socio-economic rights for people with disability who are disproportionately impacted by socio-economic disadvantage in a way that can also result in civil–political exclusion. Critical socio-economic rights include the right to social welfare and support services and the right of access to adequate health services. The privileging of civil-political over socio-economic rights risks perpetuating derision of much-needed 'welfare' services as being equivalent to charity, instead of being recognised as goods that can be provided and claimed as rights and entitlements. It also risks perpetuating stigmatisation of much-needed medical responses to disability as being always inappropriately paternalistic and rights-denying. The realisation of human rights can only be ensured for adults with cognitive disability if socio-economic goods and services are available to support them and if decisions are made and services delivered in a rights-affirming framework. This is the very challenge that the CRPD aims to meet by including civil, economic, political, social and cultural rights in the one convention in a way that embodies the principle of indivisibility to drive civil and social inclusion.

5 INDIVISIBILITY IN THE TEXT OF THE CRPD

The CRPD is the first UN convention to include a declaration of indivisibility, in reaffirming 'the universality, indivisibility, interdependence and interrelatedness of all human rights and fundamental freedoms and the need for persons with disabilities to be guaranteed their full enjoyment without discrimination'.[119] This section shows how the text of the CRPD reveals the two concepts of indivisibility identified above – that is, as recognising the interdependence between rights and the equal importance of socio-economic with civil-political rights. Some commentators emphasise the intertwining of the categories of rights in the CRPD to the extent that the division between them has no ongoing relevance.[120] Contrary to this, I conclude that given the historical and lingering subordination of socio-economic rights, a concept of indivisibility as 'entwining' the two categories risks shrouding ongoing prejudices against socio-economic rights while actually perpetuating the old hierarchy.

[119] *CRPD* Preamble para 3.
[120] DeBeco (n 10) 154.

5.1 *Rights from Both the ICCPR and the ICESCR and the Right of Communication*

Chapter 1 has already explained that the CPRD was designed as a comprehensive human rights treaty, not one limited to anti-discrimination obligations;[121] as such, it transposed existing rights from both the ICCPR and the ICESCR.[122] Examples of civil–political rights that have been transposed from the ICCPR into the CRPD include the right to non-discrimination (Articles 2 and 26 ICCPR), incorporated in Article 5 CRPD; the right to be free from torture (Article 7 ICCPR), found in Article 15 CRPD; the right to liberty and security of the person (Article 9 ICCPR), found in Article 14 CRPD; and the right to recognition as a person before the law (Article 16 ICCPR), found in Article 12 CRPD.

Examples of economic, social and cultural rights transposed from the ICESCR to the CRPD include the right to social security and social insurance (Article 9 ICESCR), found in Article 28 CRPD; the right to an adequate standard of living (Article 11 ICESCR), found in Article 28 CRPD; the right to the 'enjoyment of the highest attainable standard' of health (Article 12 ICESCR), found in Article 25 CRPD; the right to education (Article 13 ICESCR), found in Article 24 CRPD; and the right to partake in cultural life (Article 15 ICESCR), found in Article 30 CRPD. Almost all of the rights in the two covenants are included in the CRPD, although particularised for persons with disability.[123]

This mixing of civil-political and socio-economic rights in the one instrument is one indicator of indivisibility, reflecting what Whelan calls the original 'unity' of rights in the UN Declaration, before they were split between the covenants.[124] Contributing to this indivisibility is the right of communication in the Optional Protocol, which allows individuals or groups of individuals to bring complaints to the UN Disability Committee relating to alleged violations of the convention.[125]

5.2 *Civil–Political and Socio-economic Rights Mixed in the Same Articles*

In the case of the CRPD, rights in the two different categories are not just included in the one instrument but are also mixed within the same articles in a way that appears to defy the hierarchical classification of rights and further the principle of

[121] See Chapter 1, Section 3.3.
[122] Degener and Begg (n 88) 13.
[123] An exception may be that 'All peoples have the right to self-determination', in *ICCPR* Article 1 and *ICESCR* Article 1, but not replicated in the CRPD.
[124] Whelan (n 5) 2.
[125] *Optional Protocol to the Convention on the Rights of Persons with Disabilities*, opened for signature 30 March 2007, 2518 UNTS 283 (entered into force 3 May 2008) Article 1.

indivisibility. Koch points out that the right to life is traditionally a civil right and is expressed in Article 6 ICCPR in negative terms – that 'no one shall be arbitrarily deprived of his life'. Yet Article 10 CRPD adds to the right to life, asserting that states shall 'take all necessary measures to ensure its enjoyment by persons with disabilities on an equal basis with others'.[126] Article 7 ICCPR provides that 'No one will be subjected to torture, or to cruel, inhuman or degrading treatment or punishment'; while Article 15(2) CRPD replicates that wording but adds that states must 'take all effective legislative, administrative, judicial or other measures to prevent persons with disabilities, on an equal basis with others, from being subjected to torture'. The right to freedom of expression is traditionally a civil and political right and yet Article 21 CRPD adds positive obligations for States to ensure provision of information in accessible formats, thereby requiring the expenditure of potentially significant resources.[127]

Several commentators have noted the 'hybrid' formulation of the rights in the CRPD, a formulation that defies categorisation into civil–political or socio-economic.[128] Also noted is the mix of negative and positive obligations that defy strict alignment with either civil–political or socio-economic rights, respectively. Lawson comments that in the case of disability and the CRPD the 'classical distinction between positive and negative rights is an unhelpful one'.[129] The imposition of positive obligations on states in respect of rights that have traditionally been considered as civil-political also articulates more emphatically that realisation of those rights will require expenditure of state resources. Such positive obligations undermine the prejudice that 'true' human rights must always be implemented by State restraint. Mégret describes how disability in particular requires a mix of negative obligations and positive actions by the State because of the impact of structural discrimination, which requires more than a case-by-case response. The disproportionate incidence of poverty, for example, requires a solution, not just for an individual case but at a societal level.[130]

[126] Koch, 'From Invisibility to Indivisibility' (n 58) 69.

[127] Peter Bartlett, 'The United Nations Convention on the Rights of Persons with Disabilities and Mental Health Law' (2012) 75(5) *The Modern Law Review* 752, 757.

[128] Dhanda, 'Constructing a New Human Rights Lexicon' (n 105) 49; Marianne Schulze, 'Chapter 16: The Human Rights of Persons with Disabilities' in Anja Mihir and Mark Gibney (eds), *The SAGE Handbook of Human Rights* (SAGE Publications Ltd, 2014) 267, 277; Andrea Broderick, 'Harmonisation and Cross-fertilisation of Socio-Economic Rights in the Human Rights Treaty Bodies: Disability and the Reasonableness Review Case Study' (2016) 5 *Laws* 38, 42; DeBeco (n 10) 154.

[129] Anna Lawson, 'The UN Convention on the Rights of Persons with Disabilities and European Disability Law: A Catalyst for Cohesion?' in Oddný Mjöll Arnadóttir and Gerard Quinn (eds), *The UN Convention on the Rights of Persons with Disabilities: European and Scandinavian Perspectives* (Nijhoff, 2009) 81, 102.

[130] Frédéric Mégret, 'The Disabilities Convention: Towards a Holistic Concept of Rights' (2008) 12(2) *International Journal of Human Rights* 261, 265.

5.3 *A Mix of State Restraint and State Protection/Support in the Personal Sphere*

As described above, liberal theorists who privilege civil–political rights over socio-economic rights view human rights as solely designed to protect the individual from the State.[131] Mégret points to the fact that human rights law is underpinned by a public/private divide and has usually overemphasised rights owed in the public sphere at the expense of rights owed in the private sphere.[132] He contends, however, that the CRPD bridges this traditional divide. For example, Article 17 'Protecting the integrity of the person' tends to imply protection of physical and mental integrity in the public sphere, whereas Article 16 'Freedom from exploitation, violence and abuse' requires protection 'both within and outside the home' (para 1). I argue that this 'transcendence' of the 'public/private sphere divide' identified by Mégret is further evidence of the indivisibility of human rights, with civil–political rights traditionally requiring state restraint from the private sphere but socio-economic rights requiring state intervention or intrusion.

Article 19 'Living independently and being in the community' deals both with the right of a person to choose where and with whom they live, requiring state restraint from interfering in this personal matter, and obliges the State to provide in-home, residential support services, 'including personal assistance'. In Article 19, the traditional civil–political component of the right is the right to choose where to live (i.e. to exercise legal capacity), with the socio-economic component evident in the state obligation to provide services.[133] The UN Disability Committee writes in its *General Comment No 5* that:

> Article 19 entails civil and political as well as economic, social and cultural rights and is an example of the interrelation, interdependence and indivisibility of all human rights. The right to live independently and be included in the community can only be realized if all economic, civil, social and cultural rights enshrined in this norm are fulfilled.[134]

5.4 *Indivisible, but Still Visible and* Not *Totally Entwined or Dissolved into One Another*

Much of the literature on indivisibility in the CRPD doesn't engage with the broader discussion around the development of the doctrine. It tends instead to assume that the audience will understand the meaning of the terms 'interdependence' and

[131] Philip Alston (n 18) 96.
[132] Mégret (n 130) 266.
[133] Degener (n 105) 46.
[134] Committee on the Rights of Persons with Disabilities, *'General Comment No 5 (2017) On Living Independently and Being Included in the Community'* UN Doc CRPD/C/GC/5 [7]; see also Degener (n 105) 46.

'indivisibility' from very brief descriptions of the mix of rights in the CRPD. It does, nevertheless, broadly imply at times that the CRPD exhibits the interdependence of rights[135] and the equal importance of socio-economic rights with civil–political rights.[136] DeBeco is, however, one writer who has contextualised his discussion within the wider debate on indivisibility.[137] Having done so, he concludes that the hybrid nature of the rights in the CRPD leads to a new understanding of the principle. He argues that the CRPD reflects a principle of indivisibility that asserts the two sets of rights are 'mutually inextricable from each other',[138] that therefore 'the very existence of the division into civil and political and economic and social rights has itself become a hindrance to the proper interpretation of the convention', and that seeking to differentiate between them is 'pointless'.[139] This is consistent with Mégret's view that the CRPD 'transcends' the 'civil and political/economic, social

[135] Lord, for example, describes the CRPD as incorporating the principle of indivisibility on the basis that it includes both categories of rights, and, through providing examples, further implies that the CRPD demonstrates indivisibility as the interdependence of rights. Examples are of the adverse impact that inaccessible transport can have on access to education for people with disability, and how the unavailability of rehabilitation for a landmine survivor can lead to unemployment and exclusion: Janet E Lord, 'Preamble' in Ilias Bantekas, Michael Ashley Stein and Dēmētrēs Anastasiou (eds), *The UN Convention on the Rights of Persons with Disabilities: A Commentary* (Oxford University Press, 2018) 1, 11; 'Within the Convention there is an important recognition of the interdependence of all rights and a co-mingling of rights, the extent to which has never been seen in a binding human rights instrument before'. Anna Arstein-Kerslake, *Restoring Voice to People with Cognitive Disabilities: Realizing the Right to Equal Recognition before the Law* (Cambridge University Press, 2017) 19; Kanter writes that: 'Indeed the CRPD stands for the fact that all of its articles are interdependent and that civil and political rights cannot be realised unless and until the related social, economic, and cultural rights are also ensured'. Kanter (n 29) 9; Kayess and Sands explain: 'This means that the interpretation and implementatoin of … the CRPD requires applicatoin of the cross-cutting articles, but also recognition of the interrelationship between substantive articles', Rosemary Kayess and Therese Sands, *Convention on the Rights of Persons with Disabilities: Shining a Light on Social Transformation* (UNSW Social Policy Research Centre, 2020); Ron McCallum, *The United Nations Convention on the Rights of Persons with Disabilities: An Assessment of Australia's Level of Compliance* (Royal Commission into Violence, Abuse, Neglect and Exploitation of People with Disability, 2020) 37.

[136] Degener writes that: 'The legal hierarchy of civil and political rights over economic, social, and cultural rights is slowly but steadily decreasing … The CRPD is a good example of the indivisibility and interdependence of both sets of human rights': Degener (n 105) 45–6; Della Fina affirms that 'all human rights are universal, indivisible, interdependent and interrelated' after describing the inclusion of both sets of rights in the CRPD, how they are 'equally important', and how 'States are therefore responsible for violations of economic social and cultural rights as they are for violations of civil and political rights'. Valentina Della Fina, 'Article 4 General Obligations' in Valentina Della Fina, Rachele Cera and Giuseppe Palmisano (eds), *The United Nations Convention on the Rights of Persons with Disabilities: A Commentary* (Springer International Publishing, 2017) 149, 149.

[137] DeBeco (n 10) 148.

[138] Ibid 155.

[139] DeBeco's reference to differentiation being 'pointless' is made particularly in the context of implementation and the ostensible differences between progressive and immediate implementation: ibid 154.

and cultural rights divide'.[140] Koch, in the same vein, describes the CRPD as incorporating 'a certain overlapping … between the two sets of rights that seems to permit or even mandate an interpretation that dissolves the boundaries between the two distinct categories'.[141] Not dissimilarly, Stein and Lord describe the CRPD as 'holistically meld[ing] civil and political rights with economic, social and cultural rights', and that in doing so it 'aspires to manifest the mandate that human rights are 'indivisible, interrelated and interconnected'.[142]

The assertions that rights have been 'melded' or that they are inextricably intertwined and that the categories are 'inextricable' from one another have definite cogency. They accurately reflect the extent to which rights are intertwined in the drafting of the text; also, as DeBeco emphasises, they reflect the total disruption of the alignment of obligations of immediate realisation with civil-political rights and progressive realisation with socio-economic rights.[143] However, I argue against an understanding of indivisibility in the CRPD as totally dissolving the boundaries between categories to the extent that they have no ongoing relevance. The CRPD undoubtedly advances the existing challenges to the traditional bifurcation already posed by the principle of indivisibility and the eventual total dissolution of demarcation between categories of rights is a worthy aspiration. However, as long as the dichotomy is still firmly entrenched in UN and regional institutional arrangements, and there is ongoing and widespread prejudice against socio-economic rights as not being 'true' rights, it is, I propose, premature to suggest that the categories be treated as dissolved.[144]

Anthony argues that the rhetoric of indivisibility has, since the Vienna Declaration in 1993, been used to shroud the ongoing subordination of socio-economic rights, so that civil-political rights continue to be privileged, albeit under the cloak of 'indivisibility'.[145] Anthony's argument could readily be applied to *General Comment No 1*'s interpretation of Article 12 as a civil-political right fundamental to all other rights (including socio-economic rights) but at the same time recognising the principle of indivisibility.[146] In this context, I argue that it is important to emphasise that

[140] Mégret (n 130) 265–6.

[141] Koch, 'Social Rights as Components in the Civil Right to Personal Liberty' (n 46) 33.

[142] Stein and Lord (n 87) 24; see also Michael Ashley Stein, 'Disability Human Rights' (2007) 95(1) *California Law Review* 75, 77–9; Michael Ashley Stein and Penelope JS Stein, 'Beyond Disability Civil Rights' (2006) 58 *Hastings Law Journal* 1203, 1240.

[143] DeBeco (n 10) 147–8, 158.

[144] Anthony notes that 'economic, social and cultural rights are still commonly recognised as marginalised rights', Anthony (n 12) 126.

[145] Ibid v, 165–6.

[146] Indeed, affirmations of the indivisibility of human rights are often used to affirm the importance of the civil-political right to legal capacity over and above all other rights. See, for example, the Special Rapporteur's comments, which preface a reaffirmation of the prescription of universal legal capacity under Article 12: 'In the Convention the universality, indivisibility, interdependence and interrelatedness of human rights are recalled by stressing that

indivisibility does require recognition of the equal importance of the two categories of rights. If the emphasis on socio-economic rights as being 'true' human rights is not sustained, then there are significant risks that the promotion of human rights for people with disability will emphasise civil–political rights and privilege negative state action and restraint, under the cloak of the mere rhetoric of indivisibility.

5.5 *Summary, Commentary and Conclusions*

The CRPD is the first UN Convention to include a statement of indivisibility in its text. It includes both civil–political and socio-economic rights within the one convention. It mixes civil–political and socio-economic rights within the same articles, and the Optional Protocol includes a right of communication for breach of all substantive articles. This mix of traditional categories makes it apparent that human rights, whether civil–political or socio-economic, may require either restraint or positive action from the State and support or protection in the private sphere. The way that different rights are mixed within the same articles suggests that, even at a textual level, the rights are interdependent and that civil–political and socio-economic rights have equal status. However, I argue against a conception of indivisibility in the CRPD as totally dissolving the traditional categories. The rhetoric of dissolution risks cloaking the ongoing subordination of socio-economic rights and the socio-economic needs of people with disability. Given the long history of the privileging of civil–political rights, ongoing emphasis on the legitimacy of socio-economic rights as true rights requires persistent reiteration. The chapter now turns to interpreting and applying Article 12 through the principle of indivisibility.

6 INTERPRETING AND APPLYING ARTICLE 12 THROUGH THE PRINCIPLE OF INDIVISIBILITY

It is useful to set out the full text of paragraphs (1) to (4) of Article 12 – 'Equal Recognition before the law':

(1) States Parties reaffirm that persons with disabilities have the right to recognition everywhere as persons before the law.
(2) States Parties shall recognize that persons with disabilities enjoy legal capacity on an equal basis with others in all aspects of life.

persons with disabilities should fully enjoy all their rights without any kind of discrimination'. Aguilar (n 106) [20]; *General Comment No 6* reasserts the principle of indivisibility but goes on to prescribe that Article 12 is foundational to all other rights: Committee on the Rights of Persons with Disabilities, *General Comment No 6: On Equality and Non-Discrimination*, UN Doc CRPD/C/GC/6 (26 April 2018) [9], [47]–[51].

(3) States Parties shall take appropriate measures to provide access by persons with disabilities to the support they may require in exercising legal capacity.
(4) States Parties shall ensure that all measures that relate to the exercise of legal capacity provide for appropriate and effective safeguards to prevent abuse in accordance with international human rights law. Such safeguards shall ensure that measures relating to the exercise of legal capacity respect the rights, will and preferences of the person, are free of conflict of interest and undue influence, are proportional and tailored to the person's circumstances, apply for the shortest time possible and are subject to regular review by a competent, independent and impartial authority or judicial body. The safeguards shall be proportional to the degree to which such measures affect the person's rights and interests.

This section explains how Article 12 demonstrates the principle of indivisibility by demanding recognition of the interdependence of the different rights within Article 12 itself – that is, the right to legal capacity and the right to support[147] – in a way that also illustrates the equal importance of socio-economic with civil-political rights. Later chapters consider the interdependencies between Article 12 and other rights in the CRPD.

6.1 *Article 12 as a Civil-political Right*

General Comment No 1 refers to Article 12 as a 'civil right'[148] and further states that:

> The right to equality before the law has long been recognised as a civil and political right, with roots in the International Covenant on Civil and Political Rights….The state obligation provided for in article 12, paragraph 3, to provide access to support in the exercise of legal capacity is an obligation for the fulfilment of the civil and political right to equal recognition before the law.[149]

In arriving at this categorisation of the whole of Article 12 as a civil-political right, *General Comment No 1* relies on Article 12's origins in the ICCPR, Article 16 ICCPR providing that 'Everyone shall have the right to recognition everywhere as a person before the law'.[150]

This categorisation of Article 12 as a civil-political right is also consistent with *General Comment No 1*'s interpretation of Article 12 as requiring the abolition of

[147] See below for discussion of how Article 12(3) can be conceived of as a separate but related 'right to support'.
[148] *General Comment No 1* [1].
[149] Ibid [30].
[150] Article 26 *ICCPR* also provides that: 'All persons are equal before the law and are entitled without discrimination to the equal protection of the law'.

guardianship and decision-making by substitutes. Such an abolition requires 'negative' action by the State in terms of removing guardianship and restraint from intruding into an adult's private sphere. Considered in isolation, repealing guardianship legislation is 'cost-free' and can be implemented immediately. The wording in paragraph (3) of Article 12, which obliges States to take 'measures to provide *access*' [emphasis added] to support for legal capacity could also be taken to imply that providing support requires only negative action from the State. Commentators have written that the term 'access' in Article 12(3) implies that 'dense social networks already exist',[151] and that Article 12(3) may allow for the harnessing of supports that already 'occur naturally in the community'.[152] *General Comment No 1*, in providing that all adults should be able to 'choose one or more trusted support persons … or may call on other forms of support',[153] assumes that adults have wide networks of trusted supporters and other resources at their disposal.[154]

The UN Disability Committee's view is that the whole of Article 12 is a civil–political right and *General Comment No 1* thus provides that as a civil–political right:

> the rights provided for in Article 12 apply at the moment of ratification and are subject to immediate realisation … 'Progressive realisation' Article 4(2) does not apply to the provisions of Article 12.[155]

6.2 *Article 12 as a Socio-economic Right*

Paragraph (3) of Article 12 is framed as a state obligation to provide supports but is nevertheless often referred to as creating a separate but related 'right to support'[156]

[151] Gerard Quinn and Abigail Rekas-Rosalbo, 'Civil Death: Rethinking the Foundations of Legal Personhood for Persons with a Disability' (2016) 56 *Irish Jurist* 286.

[152] Gerard Quinn, 'From Civil Death to Civil Life: The Decay and Re-Birth of Legal Capacity Law around the World' (Conference Paper, Australian Guardianship and Administration Council National Conference: Reflecting Will and Preference in Decision-Making, 17–18 October 2016) 10 <www.agac.org.au/images/stories/2016nsw/quinn-decay-rebirth-legal-cap-law.pdf>.

[153] *General Comment No 1* [17].

[154] Note that trials of informal supported decision-making have indicated that many adults with cognitive disability do not have 'naturally occurring' supporters but may indeed be socially isolated: Terry Carney et al, 'Realising "Will, Preferences and Rights": Reconciling Differences on Best Practice Support for Decision-Making?' (2019) *Griffith Law Review* 357, 363; Office of the Public Advocate (Qld), *Decision-Making Support and Queensland's Guardianship System: A Systemic Advocacy Report* (A Systemic Advocacy Report, April 2016) 183–4.

[155] *General Comment No 1* [30].

[156] Terry Carney, 'Prioritising Supported Decision-Making: Running on Empty or a Basis for Glacial-to-Steady Progress?' (2017) 6(4) *Laws* 18 20, 23, 24, 28; Eilionoir Flynn and Anna Arstein-Kerslake, 'Legislating Personhood: Realising the Right to Support in Exercising Legal Capacity' (2014) 10(1) *International Journal of Law in Context* 81; Elif Celik, 'The Role of CRPD in Rethinking the Subject of Human Rights' (2017) 21(7) *The International Journal of Human Rights* 933, 947.

(or 'supports'[157]) or as the 'right to supported decision-making'.[158] Some commentary is beginning to emerge suggesting either that Article 12(3) is a socio-economic right or that Article 12 as a whole is best described as a mixed civil–political and socio-economic right.

6.2.1 Supports Equate to Socio-economic Resources

Carney states that 'arguably' the right in Article 12 paragraph (3) (i.e. the right to supports) is a socio-economic right because of its 'capacity building personal development' aspects and because it gives rise to discussions akin to 'traditional welfare allocation (and priority setting) debates'.[159] Carney emphasises that fulfilment of Article 12(3) necessitates a significant injection of state resources, thus contributing to its categorisation as a socio-economic right. He further expresses the view that even if there is some disagreement about this categorisation, in the 'realpolitik of government' (i.e. in practical terms) the implementation of the necessary supports will only be achieved progressively in the tradition of socio-economic rights.[160] He concludes that, for this reason, the UN Disability Committee's requirement to abolish substitute decision-making regimes immediately[161] is not feasible. If achieved, it would leave some people with cognitive disability subject to neglect and exploitation while support systems were in development.[162]

Quinn writes of the dangers of not providing enough resources for individuals to realise their personhood through supported decision-making.[163] Further, 'at first blush' Article 12(3) appears to be subject only to progressive realisation, although in some cases immediate provision of support is possible.[164] Quinn and Rekas-Rosalbo

[157] Michael Bach and Lana Kerzner, *A New Paradigm for Protecting Autonomy and the Right to Legal Capacity: Advancing Substantive Equality for Persons with Disabilities through Law, Policy and Practice* (Law Commission of Ontario, October 2010) 112, 113, 165.

[158] Joanne Watson, 'The Right to Supported Decision-Making for People Rarely Heard' (PhD Thesis, Deakin University, 2016); Arstein-Kerslake, 'An Empowering Dependency: Exploring Support for the Exercise of Legal Capacity' (2016) 18 *Scandinavian Journal of Disability Research* 77, 87.

[159] Carney, 'Prioritising Supported Decision-Making' (n 156) 18–19.

[160] Ibid 18.

[161] As to the UN Disability's requirement to *immediately* abolish substitute decision-making: 'States parties' obligation to replace substitute decision-making regimes by supported decision-making requires both the abolition of substitute decision-making regimes and the development of supported decision-making alternatives. The development of supported decision-making systems in parallel with the maintenance of substitute decision-making regimes is not sufficient to comply with article 12 of the Convention'. In *General Comment No 1* [28].

[162] See also Terry Carney, 'Supported Decision-Making for People with Cognitive Impairments: An Australian Perspective?' (2015) 4 *Laws* 37, 41.

[163] There is a 'risk that the self will be moulded to fit the level of currently available social resources. Instead of becoming the sum total of what you consume you might just become the sum total of what we can afford'. Quinn 'From Civil Death to Civil Life' (n 152) 28.

[164] Gerard Quinn, 'Concept Paper "Personhood and Legal Capacity": Perspectives on the Paradigm Shift of Article 12 of the CRPD' (Conference Paper, HPOD Conference, 20 February, 2010) 19 www.inclusiveirelandie/document/HarvardLegalcapacitygqdraft2.doc;19.

describe how 'putting support in place takes a lot of … resources'[165] and Article 12(3) has the 'look and feel of an obligation that is to be progressively "realised"'.[166] They also describe as 'debatable' *General Comment No 1*'s assertion that the right to support is a civil–political right and immediately realisable. Degener was a member of the UN Disability Committee at the time that *General Comment No 1* was made, and yet she also writes of Article 12(3) that: 'These support measures are realised by social services, which fall into the economic, social and cultural rights sphere'.[167]

Not only do trusted family and friends who act as supporters require training and resources, but the State has an obligation to provide volunteer or paid supporters for adults who find themselves isolated. Supported decision-making pilots have shown that many adults are indeed isolated, so that, where adults do not 'have access to naturally occurring supports in the community',[168] the provision of access to supports becomes a 'more muscular obligation'[169] requiring state assistance or intervention. All of this analysis supports the conclusion that Article 12(3) is more convincingly categorised as a socio-economic right.

6.2.2 Fulfilling Article 12(4) Obligations

Article 12(4) obliges the State to provide safeguards for the exercise of legal capacity, and Carney categorises paragraphs (3) and (4) together as a social right.[170] While Article 12(3) requires the availability of trusted support persons, Article 12(4) requires safeguards to 'prevent abuse' and guard against 'conflict of interest and undue influence'. In providing that safeguards must be 'proportional and tailored to the person's circumstances, apply for the shortest time possible', and be subject to regular review by an independent authority, paragraph (4) anticipates an administrative and judicial oversight scheme for supported decision-making and, I would argue (with others), a system of decision-making by substitutes.[171] *General Comment No 1* is silent on the type of safeguards to be instituted, provided that they respect the adult's 'rights, will and preferences',[172] but it seems inevitable that they will require positive actions by the State, will be resource-intensive, will take time to progress, and will necessarily intervene in the relationship between the adult and the 'supporter'. In this way,

[165] Quinn and Rekas-Rosalbo (n 151) 309.
[166] Ibid 303.
[167] Degener (n 105) 45–6.
[168] Anna Arstein-Kerslake and Eilionóir Flynn, 'The General Comment on Article 12 of the Convention on the Rights of Persons with Disabilities: A Roadmap for Equality before the Law' (2016) 20(4) *The International Journal of Human Rights* 471, 478.
[169] Quinn and Rekas-Rosalbo (n 151) 301.
[170] Carney, 'Prioritising Supported Decision-Making' (n 156) 18.
[171] Ad Hoc Committee, *Daily Summary of the Fifth Session* (25 January 2005) www.un.org/esa/socdev/enable/rights/ahc5sum25jan.htm Ad Hoc Committee, *Daily Summary of the Fifth Session* (25 January 2005).
[172] *General Comment No 1* [21].

the safeguard obligation framed as part of the right to supports bears all the indicia of a socio-economic right.[173]

6.2.3 Obligations in Article 12(3) and (4) Are Resource-Intensive

Socio-economic rights are traditionally characterised as resource-intensive, and other commentators emphasise that support for decision-making will require injection of significant state resources. Alston points out that designing legislative regimes for supported decision-making is a relatively minor challenge compared with the need for the 'availability of resources to facilitate the provision of support and effective oversight arrangements'.[174] Martin et al recommend that 'statutory advocacy services should be funded at a level that ensures genuine and effective access to independent advocates' for supported decision-making,[175] and other commentators recommend a range of relationship-building supports, administrative supports and training for support persons.[176] The Queensland Office of the Public Advocate writes that 'As this is a newly evolving concept, the costs of providing such a service will depend on the resources and economic wealth of each jurisdiction',[177] and Arstein-Kerslake and Flynn acknowledge that 'Limited resources may be one problem that prevents the development of supports for every individual that are completely tailored to their needs'.[178] These commentators are warning that increased investment in community resources is a pre-condition for increasing access to supported decision-making and minimising or abolishing the use of guardianship.[179] In other words, the fulfilment of the socio-economic rights to support is a pre-condition for fulfilling the right to legal capacity.

[173] I note here that there is an argument that the rights to registration and judicial oversight do also suggest the architecture used to support civil-political rights. However, the point here is that such regulatory systems do bear the stereotyped indicia of socio-economic rights in being intrusive and resource-intensive.

[174] Bruce Alston (n 134) 39; the ALRC, in prescribing the duties of a representative implies that socio-economic rights are relevant when it says that they must consider the relevant human right and a person's 'social, financial and cultural well-being': Australian Law Reform Commission, *Equality, Capacity and Disability in Commonwealth Laws: A Final Report* (2014) 105.

[175] Wayne Martin et al, *Three Jurisdictions Report: Towards Compliance with CRPD Article 12 in Capacity/Incapacity Legislation across the UK* (Essex Autonomy Project, 2016) 3.

[176] Bach and Kerzner (n 157) 75–80; Leslie Salzman, 'Guardianship for Persons with Mental Illness – A Legal and Appropriate Alternative' (2011) 4 *St Louis University Journal of Health Law and Policy* 279, 328.

[177] Office of the Public Advocate (Qld), *Decision-Making Support and Queensland's Guardianship System* (n 154) 163.

[178] Arstein-Kerslake and Flynn, 'The General Comment on Article 12 of the Convention on the Rights of Persons with Disabilities' (n 168) 477.

[179] Note that Harding suggests that the costs of providing support and safeguarding could be offset by some potential savings of supported decision-making plus registration, reporting and supervision fees: Rosie Harding, 'Supporting Everyday Legal Capacity: Navigating the Complexities of Putting Rights into Practice' in Mary Donnelly, Rosie Harding and Ezgi Tascioglu (eds), *Supporting Legal Capacity in Socio-Legal Context* (Hart Publishing, 2022) 291, 312.

6.3 The 'Chicken and Egg' or 'Initiation Problem'

Carney concludes that because the right to enjoy legal capacity is conditional on realisation of the right to support, Article 12 as a whole embodies a tension between civil-political and socio-economic rights, and that this tension reflects and illustrates the principle of indivisibility.[180] This practical interdependency reveals a paradox at the heart of an interpretation of Article 12 as requiring recognition of universal legal capacity, a paradox that one writer has described as the 'chicken and egg' situation.[181] One implication of this paradox is captured by Parker when he describes the 'initiation problem' associated with supported decision-making, which arises because an adult must choose a supporter to help him or her make decisions but may not be able to freely make that initial choice of supporter, if he or she doesn't yet have support.[182] Another consequence of the 'chicken and egg' problem is that if an adult has a supporter who is exercising undue influence over him or her, then if the adult agrees to this supporter and rejects all others, the decision to continue with the existing supporter may be recognised as an exercise of legal capacity.

If, on the other hand, the principle of indivisibility is invoked to recognise that the right to legal capacity depends on the right to support, and if the socio-economic right to support is recognised as being of equal importance to the civil-political right to legal capacity, then a decision can be made to provide alternative, more trustworthy support for the adult. This would effectively require that a substitute make a decision for the adult in relation to new and different supports. This recognises the interdependence of the rights within Article 12 itself and I argue more fully in subsequent chapters that this would also recognise the interdependence of Article 12 with other articles in the CRPD. This is because the substitute would be able to make claims for fulfilment of the adults' broad range of human rights in a way that may improve the adult's legal capacity but would also serve as a vehicle through which a range of socio-economic rights – from housing and health services to social inclusion – could be claimed for the adult.

6.4 Summary and Conclusions on Article 12 and Indivisibility

The UN Disability Committee has categorised the whole of Article 12 as a civil-political right, subject to immediate realisation. This is because the right to equal recognition before the law has been adapted from the ICCCPR and is associated with civil-political status. The categorisation of Article 12 as civil-political is also associated with the UN Disability Committee's prescription that it be implemented

[180] Carney, 'Prioritising Supported Decision-Making' (n 156) 19.

[181] Amita Dhanda, 'From Duality to Indivisibility: Mental Health Care and Human Rights' (2016) 32(3) *South African Journal on Human Rights* 438, 455.

[182] Malcolm Parker, 'Getting the Balance Right: Conceptual Considerations Concerning Legal Capacity and Supported Decision-Making' (2016) 13(3) *Journal of Bioethical Inquiry* 381, 388.

through the immediate abolition of substitute decision-making (i.e. an action of state restraint that is on the face of it 'cost-free'). Commentators have pointed out, however, that Article 12(3), the right to support, has the indicia of a socio-economic right in that it demands the provision of goods and services depending on action by the State at significant cost, so that realistically it can only be implemented progressively.

The wording of Article 12(3), as providing 'access' to supports, implies that supports are already in existence in the community, to be accessed once the barrier of substitute decision-making systems is dismantled. In some cases that will be true, such as when adults are enmeshed in trustworthy social relationships and have immediate access to material resources. However, in many cases 'access' will require positive steps by States and others, and significant resources to build. Repeal of substitute decision-making regimes on the face of it signals a retreat by the State from regulating private lives. However, the reality is that the State will be intervening in private lives and personal relationships by providing, or ensuring the provision of, support services for personal decision-making and through regulating support services. The traditional bifurcation between civil-political and socio-economic rights is disrupted and the historical hierarchies disappear, demonstrating and developing one aspect of the principle of the indivisibility of human rights.

An understanding of the whole of Article 12 as a civil–political right is a limited one and, I argue, disregards any possibility of indivisibility within Article 12 itself. The assertion that the whole of Article 12 is civil–political fails to acknowledge that Article 12 could be interpreted as incorporating two interdependent rights – the right to legal capacity and the right to support. As such, it disrupts the traditional hierarchy of rights. On the other hand, interpreting Article 12 through the lens of indivisibility acknowledges that (1) Article 12 includes rights from both categories and incorporates a mix of positive and negative obligations; (2) while the abolition of guardianship may be 'cost-free', support measures may be resource-intensive, and (3) realisation of legal capacity may require some intervention or intrusion into the personal sphere to uphold human rights.

7 SUMMARY AND CONCLUSIONS

The chapter has described how the UN Declaration included both civil-political and socio-economic rights in one instrument without distinction. It was only with the transposition of these rights into an enforceable covenant that a decision was made to split the rights into the two now well-recognised categories. The dominant explanation for the splitting of the rights between the ICCPR and the ICESCR has been the impact of Cold War politics, with socio-economic rights being favoured by communist states and civil-political rights favoured by the West. An alternative or supplementary explanation is that with the development of an enforceable

covenant, it became unclear if socio-economic rights could be effectively subject to the same enforcement mechanisms as civil-political ones. An exploration of why the covenants were split is beyond the scope of this book. However, from the 1950s, statements on the indivisibility and interdependence of human rights increased, leading in 1968 to the Proclamation of Teheran, followed in 1993 by the Vienna Declaration.

While there is no universal agreemenf on a definition of the principle of indivisibility, this chapter settles on a concept with two key features that are prominent in the literature. First, indivisibility asserts the interdependence of human rights, and second, it recognises the equal importance of socio-economic rights with civil-political rights. In doing so, indivisibility also reveals that the historical bifurcation of rights based on the traditional indicia cannot be sustained, those indicia being, for civil-political rights, negative action, immediate realisation and 'no cost', and, for socio-economic rights, positive action, progressive realisation and resource-intensiveness. Indivisibility, thereby, also disrupts the traditional privileging of the private and personal sphere as a space where rights are always upheld through state restraint.

The chapter situates the development of the principle of indivisibility in the context of the history of disability advocacy and rights. Originally, disability was framed in UN institutions and advocacy as a social policy issue at a time when socio-economic rights were of a lesser status than civil-political ones. As such, disability policy was subordinated to human rights issues when the only 'true' human rights were civil-political human rights. As the focus of social policy, people with disability were framed as needy and burdensome, as objects of pity and as the recipients of 'good deeds'. There was, therefore, an urgency to situate people with disability as the subjects of human rights – in particular, the 'true' human rights being civil-political. The chapter argues that this has led to an over-correction in disability advocacy to the extent that *General Comment No 1* now situates the civil-political right to legal capacity as the apex of human rights, the fulfilment of which is a pre-condition to fulfilling any other human right.

The principle of indivisibility adjusts this over-correction to assert the equal importance of both sets of rights. This recognises the material reality that, depending on an adult's contingent circumstances, the fulfilment of a socio-economic right may be a pre-condition to exercising legal capacity and achieving a range of other human rights. The chapter highlights the particular importance of the principle of indivisibility to disability rights, given that people with disability are disproportionately exposed to socio-economic disadvantage compared with other members of the community. It describes how the principle of indivisibility demands that 'welfare' and other support services be claimed as the fulfilment of socio-economic rights and entitlements and not provided or received as discretionary acts of charity. It also describes the critical importance for people with disability of the socio-economic right to health services, noting that several commentators regard such a right as a foundational and enabling right.

The chapter establishes that the CRPD, more than any other convention, expresses a commitment to indivisibility. It is the first UN Convention to include a statement of indivisibility; more significantly, it mixes rights from the traditionally separate categories and includes requirements for positive and negative state actions in the same articles. The literature on the CRPD has widely hailed the convention as revolutionary in its incorporation of the principle of indivisibility. Further, this literature has expressly or impliedly acknowledged indivisibility as the interdependence of rights and the recognition of the equal importance of socio-economic with civil-political rights.

However, I argue that those interpretations of Article 12 that require the abolition of decision-making by substitutes fail to apply the principle of indivisibility as understood in this book. In those interpretations, the 'interdependent' component of indivisibility is only ever understood as operating one way, with the fulfilment of all other rights unilaterally dependent on fulfilling Article 12. Such interpretations also ignore the second concept of indivisibility as demanding recognition that socio-economic rights in the CRPD are of equal importance to the civil-political right to legal capacity. Further, they gloss over the impact of the indivisibility of human rights to the arguably two separate rights within Article 12 itself: the civil-political right to legal capacity and the socio-economic right to support. The chapter concludes with an analysis of Article 12 that demonstrates the interdependency of the right to legal capacity with the right to support for decision-making and the equal importance of the two rights. It explains that the privileging of the right to legal capacity over the right to support cannot be sustained in the real world of people with disability.

The next three chapters consider the interdependencies between Article 12 and other rights in the CRPD and examine how the human rights values of autonomy, dignity and equality can be interpreted as embodying the indivisibility of human rights.